

Tariq v. Pashimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 August 2018 · WRIT - C No. 26992 of 2018 · **Writ disposed; petitioner directed to appear before the Executive Engineer on 27.8.2018 with objections; speaking final order in accordance with law; reconnection not granted.**

HEADNOTE

After an alleged theft inspection, the licensee issued a provisional-assessment notice giving 15 days to object but fixing no date or time of hearing, and disconnected supply. Applying Clause 6.8(b) of the U.P. Electricity Supply Code, 2005, the Division Bench held that the assessing officer must appoint a date and time of hearing. Without restoring supply or deciding the theft, it directed the consumer to appear on 27 August 2018 with objections and the Executive Engineer to pass a speaking final order in accordance with law.

FACTUAL SUMMARY

An inspection of the petitioner Tariq's house by officers of Pashimanchal Vidyut Vitran Nigam Ltd. allegedly found theft of electricity. The licensee then made a provisional assessment and issued a notice dated 1 August 2018 requiring objections within 15 days, without fixing any date or time of hearing. Electricity supply at the premises was disconnected. Tariq filed this writ petition seeking a mandamus to reconnect supply to the house.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

date and time of hearing on provisional assessment

HOLDING

Clause 6.8(b) of the Electricity Supply Code, 2005 requires the assessing officer to fix a date and time of hearing on a provisional assessment. A notice that merely allows 15 days to object, without appointing a hearing, is non-compliant. The Court did not restore supply or quash the assessment; it fixed 27.8.2018 at 11 a.m. for the consumer to appear with objections and directed the Executive Engineer to pass a speaking final order after considering those objections in accordance with law. ¶ 1

FLAG Court applied Clause 6.8(b) to an alleged theft assessment without addressing Clauses 8.1–8.2.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion After an alleged theft inspection, the licensee issued a provisional-assessment notice giving 15 days to object but fixing no date or time of hearing, and disconnected supply. Applying Clause 6.8(b) of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ALLEGED THEFT, VALIDITY OF THE PROVISIONAL ASSESSMENT, AND RECONNECTION OF SUPPLY

Court expressly declined to opine on merits; reconnection not granted; Executive Engineer to decide objections by speaking order in accordance with law. ¶ 1